

OPINION/2023/92

I. Request

1. The Budget and Finance Committee of the Assembly of the Republic submitted to the National Data Protection Commission (CNPD), for opinion, the Draft Law No. 109/XV/2nd (GOV) -- Approves the State Budget for 2024.

2. The request made and this opinion fall within the attributions and competencies of the CNPD, as the national authority for the control of personal data processing, under the provisions of paragraph c) of paragraph 1 of Article 57 and paragraph 4 of Article 36 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016 (General Data Protection Regulation - GDPR), in conjunction with the provisions of Article 3, paragraph 2 of Article 4, and paragraph a) of paragraph 1 of Article 6, all of Law No. 58/2019, of August 8 (which aims to ensure the implementation, in the internal legal order, of the GDPR).

3. The assessment by the CNPD is limited to the regime aspects related to the processing of personal data, that is, to the operations concerning information relating to identified or identifiable individuals - cf. paragraphs 1) and 2) of Article 4 of the GDPR - focusing on the provisions that foresee or imply the processing of personal data.

II. Analysis

4. Thus, considering the objective delimitation of this request, this opinion will particularly focus on the matters provided for in Articles 77, 79, 133, 134, 137, 166, 169, and 185, as they constitute provisions that directly embody and/or radiate matters of personal data.

5. Primarily, this Commission cannot fail to emphasize that the matter of personal data shares the legal dimension of fundamental rights, thus assuming itself as part of that common core heritage of rights and freedoms on which the experience of a democratic society is based, with the political-legislative consequences that such dignity demands.

6. Therefore, the protection of personal data is directly provided for in the Charter of Fundamental Rights of the European Union¹, and its processing must comply with the principles and foundational ideas widely recognized in European and national legislation that disseminate that identity, and that seek to confirm and promote the idea of human rights that is at its origin, as one of its manifestations.

7. As a fundamental legal matter, the protection of personal data also enjoys the enshrinement of a set of specific principles, which emerge in dependence on the axiological core of that essential nucleus, in order to confirm their effectiveness.

8. Thus, in this sense, the following principles emerge as conforming this matter², in addition, of course, to those of lawfulness³, fairness⁴, and transparency⁵, and those of accuracy⁶, integrity and confidentiality⁷, as well as those of necessity, relevance, and adequacy to the specific purposes that justify the processing⁸ and, collectively, the minimization of the data to be processed, in at least two aspects: the quantity and type of data processed, and the extent of the processing to be carried out, focusing on the limitation of its retention.

9. It is, therefore, in this light that all data processing must be considered, and likewise evaluated, which will also guide the observations that will be made in this document.

10. Furthermore, it should be noted that the Draft Law under consideration is not supported by an impact study on the protection of personal data, which is, it should be recalled, mandatory under the combined provisions of Articles 18, paragraph 4, of Law 43/2004, 7 of Law 58/2019, and 35 of the GDPR.

11. Such omission, it should be said, may compromise a more complete assessment regarding the probable risks arising from the processing of personal data to be carried out and, above all, may hinder the reasoned decision of the holders of political-legislative power on a matter in which understanding such risks is essential to conclude, on the legislative level, regarding the admissibility and conditions for the execution of new data processing.

2 See, in general, Article 5 of the GDPR.

3 The health-related data referred to here, in its functional sense regarding personal data,

encompasses data related to the physical or mental health of an individual, including the provision of health services or that reveal information about the state of health, whether past, present, or future. This definition can be found in Recital 35 of the GDPR.

4 Simplistically, as an element preventing harmful, unexpected, manipulative, or misleading processing.

5 Thus states Recital 39 of the GDPR. It should be transparent to individuals that the personal data concerning them is collected, used, consulted, or subjected to any other type of processing and the extent to which personal data is or will be processed. The principle of transparency requires that information or communications related to the processing of such personal data be easily accessible and understandable, and formulated in clear and simple language.

6 Data must be accurate and kept up to date where necessary.

7 Data must be processed in a manner that ensures its security, including against unauthorized or unlawful processing, and against accidental loss, destruction, or damage.

8 This is, thus, a judgment of proportionality.

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12. Therefore,

i. Regarding the provisions of Article 77 - Measures for Contributory Transparency.

13.

debtors to social security the disclosure of lists provided for in subparagraph a) of paragraph 5 of Article 64 of the General Tax Law, approved in annex to the Decree-

14. This is, therefore, a legal referral, whose purpose is the application of a regime analogous to that already provided for tax debtors (or taxpayers who do not have their contributory situation regularized), not encompassing the obligation of confidentiality that weighs on the leaders, employees, and agents of the tax administration - in the sense of keeping confidential the data collected about the tax situation of taxpayers and the elements of a personal nature obtained in the procedure - lists of taxpayers whose tax situation is not regularized, namely lists hierarchized according to the amount owed, provided that any of the deadlines has already elapsed.

15. The provision in question also foresees an extensive set of information exchanges - or sharing and communication of information - corresponding to contents of personal data.

16. More specifically, it is provided that,

- Social security and CGA, I.P., send to AT, by the end of February each year, the amounts of all social benefits paid, including pensions, scholarships, and training allowances, housing rent subsidies, and other public housing support, per beneficiary, relating to the previous year, when the data is held by the information system of social security or CGA, I.P., through an official model.

3 - AT sends to social security and CGA, I.P., through an official model, the amounts of income reported in annexes A, B, C, D, J, and SS to the IRS income declaration, relating to the previous year, per taxpayer covered by the contributory regime of social security or by the convergent social protection regime, within 60 days after the deadline for submitting the said declaration, and whenever there is any change, electronically, by the end of the second month following that change.

4 - AT sends to social security the information and the amounts of income from the sale of goods and products and from the provision of services relevant for determining the contributory obligation of the contracting entities, under the provisions of the Code of Contributory Regimes of the Social Security Welfare System, approved in annex to Law No. 110/2009, of September 16, in its current wording.

5 - AT and the competent services of the Ministry of Labor, Solidarity, and Social Security may proceed to take concerted positions aimed at collecting debts from companies, IRC taxpayers, in economic difficulties.

2v.

6 - For the purposes of the provisions of the previous number, AT and the competent services of the Ministry of Labor, Solidarity, and Social Security exchange information regarding those companies that are necessary for taking a concerted position, in terms to be defined by order of the members of the

Government responsible for the areas of finance and social security.

7 - To allow for the taking of concerted positions, the order referred to in paragraph 2 of Article 150 of the Code of Tax Procedure and Process (CPPT), approved in annex to Decree-Law No. 433/99, of October 26, in its current wording, may determine, at any time, the alteration of the competence for the acts of

17. This type of data processing has already been, directly or indirectly, the subject of opinions by this Commission, namely in opinions No. 38/2005, 16/2006, 43/2016, 54/2018, 79/2019, 2020/4, and, more representatively and on similar matters, opinions 37/2022 and 98/2022, not constituting original material in the legislation regarding the State Budget.

18. In this line and in summary, one should not overlook the impact that the disclosure of this type of information on the Internet has on people's private lives, which should be weighed, in all circumstances, against the purpose that justifies its use and assessed under the matrix criterion represented by the principle of proportionality not only in the judgment of abstract adequacy between the means to be used, directed at pursuing the intended ends and in balance with other rights or constitutionally protected goods but also, cumulatively, judging, now in concrete terms, its necessity, especially since the legislator does not have other less restrictive means to achieve the same end, and, finally, still demanding the removal of measures that prove disproportionate to achieve the intended purpose.

19. In this light, it is believed that the availability or, more appropriately and illustratively, the online disclosure of personal data, making them public and uncontrollably accessible, as well as, correspondingly, unrestricted possibilities for their use by indeterminate recipients - that is, not allowing an objective and clear delimitation of the purposes that justify the means - does not seem to surpass the proportionality test that has just been outlined.

20. Furthermore, for this negative conclusion of proportionality, there is no judgment of equivalence that can serve as justification and motivation by the proponent of the measure regarding the positive effects that may arise from it, nor is there any mechanism for mitigation or control regarding the information made public expressed in the Proposal.

21. In fact, even if the effects that publicity may have concerning the legal security and certainty that it can provide are deemed positive, in the abstract, particularly stated as

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simple, to inform potential (counter)parties in legal transactions that a certain person has debts to Social Security, the internet does not share the same principles that justify the usefulness of the publicity principle in public registration, which is, moreover, much more restricted than mere public and open disclosure on the Internet, where, as a rule, it is not possible to control who the recipients of the information are and what practical purposes the provided data are intended for, contrary to what is imposed by the aforementioned principles of personal data processing.

22. One thing, therefore, is the accessibility to a specific public of personal information under the public interest, providing them with information about third parties for a legally admissible purpose; another is the unrestricted publicity of that same information to a general public with motivations that may have nothing to do with any notion, even the broadest, of legal security or certainty, thus distorting the cause that may allow its use, clearly exceeding, in the subjective scope, the mere interested business counterparts.

23. It should not be lost sight of that the disclosure of information in the virtual world can extend far beyond what is necessary to fulfill the purpose of its publication, allowing, moreover, the easy dissemination and perpetuation of personal data, as well as the collection, aggregation, cross-referencing, copying, and undifferentiated use, more or less lawful, of what may have been placed there at some point.

24. From this perspective, it would always be appropriate to invoke a careful praise of the principle of accuracy, ensuring that the data is accurate and up-to-date—always in relation to the strictly necessary purposes for which the processing serves—and that it is deleted or rectified immediately as soon as the cause that justified its collection and processing ceases, since personal information open

to the public can not only cause personality damages but also, if one starts from the justification of protecting third parties in legal transactions, the economic freedom of the data subjects and material or commercial damages that may arise from it.

25. Furthermore, in this vein, the disclosure of personal data on the internet, for all that has been said, may enhance or facilitate the aggregation of information about individuals in order to establish profiles, often susceptible to serve as a means of discrimination, which is uncontrollable, since it may allow stigmatizing citizens as debtors and, likewise, serve as a reason for other business in daily life or for the full affirmation of citizenship and its dignity, through the manipulation of which they are capable, which has nothing to do with the rationale that gave rise to them.

9 Often accompanied by constitutive effects.

3v.

26. In this sense, the CNPD believes that this instrument should be reconsidered, aiming for the harmonization and balance between the interests at stake, such as the effectively targeted public interest and the guarantee of the fundamental rights of data subjects.

ii. Regarding the provisions of Article 79 - Direct consultation in executive proceedings.

27. Article 79 of the Proposal under analysis does not assume, in relation to the opinion of this Commission, a new cause.

28. This normative excerpt states, in its number 1, that debt collection assignments to social security may obtain information regarding the identification of the executed party, the debtor, or the head of the household, when applicable, and the location of their attachable assets, through direct consultation of the databases of the tax administration, social security, and land registry.

29. Now, considering the content of the legal text in question, it is immediately clear that specific data intended to be collected or processed are not specified, leaving them indeterminate, since only the objectives are defined that are intended to be achieved with that collection and processing, i.e., regarding the identification of the

30. In fact, considering the fundamental nature that personal data assumes and which has been characterized above, it cannot include all and any information susceptible of being collected, since these may contend with spheres of protection that are more or less restricted, more or less relevant or pertinent, from various aspects and sources, and with reference to different teleologies, especially when, according to the aforementioned norm, such diverse sources may be used—databases of the tax administration, social security, land registry, commercial registry, vehicle registry, and civil registry.

31. In other words, there is, therefore, no precise characterization of the personal data processing at stake, and those that may have been collected in other databases and their own purposes where information is now intended to be collected are contaminated in cascade, all in clear collision with the principles of purpose limitation of processing and minimization, which must be concretized in the sense that data must be collected for determined, explicit, and legitimate purposes, and may not be processed subsequently in a manner incompatible with those purposes, as well as, in its scope, be reduced in function of the

10 And not precisely ends, in the sense that has been used.

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its adequacy, relevance, and limitation to what is necessary, concerning the purposes for which they are processed.

32. Special attention should be paid, in the view of the CNPD, as also mentioned in the opinions

33. If the reservations regarding the absorption of personal information stored in multiple databases have already been addressed, the ambiguity is exacerbated in the final wording of the excerpt under analysis; at this point, it is not even achievable to determine which sources/databases may be included, to such an extent that it does not allow for the concatenation with compliance with the personal data protection framework, thus necessitating its elimination, as it compromises any expectation, security, or control over the quality and flows of the information to be processed.

34. Although it is commendable that, in its number 2, it is pedagogically mentioned that the processing in question will comply with the principles and rules applicable to data processing, as provided for in the GDPR and Law 58/2019 and 59/2019, the mere enumeration of the applicable norms does not exempt the need to specify, in concrete terms, and always depending on the particular data and purposes to be processed, the specific regime to be applied to that processing, where these legal rules are indeed realized, in contact with the guarantees of the rights of the data subjects. That is, it is in this becoming that the norms are applied, and on that application control can be exercised, since the mere enumeration of the legal framework only assumes an indicative-subsumptive function, as it is always applicable, with or without that mention.

iii.

35. The considerations expressed above, in points 26 to 33 of this Opinion, apply, *mutatis mutandis*, to these items.

36. Referring the discipline of processing and transmission of personal data to protocols to be established for transmission, whether in processing and subject to interconnection, conditions of access and communication [cf. Article 133, No. 3], this Commission cannot refrain from making some considerations, which are, by the way, recurrent.

37. The data interconnections, as formulated, involve personal data processing that poses a considerable risk to citizens, as they are not accompanied by a definition of the elements subject to these executions, nor by measures that can be deemed adequate for the mitigation or prevention of those risks.

38. The tests mentioned above, essential to confer legality and full guarantee to the rights of data subjects, must necessarily be carried out beforehand, with legal coverage and framing, as required by the fundamental nature of those rights.

39. In fact, leaving the definition of the object and scope of personal data processing for a future protocol to be established between administrative and/or private entities implies, therefore, that a more or less discretionary assignment is given to those entities, which essentially translates into them operating restrictions on the fundamental rights of citizens, in clear constitutional contradiction and contrary to those actors of the same motivations.

40. The norm does not result, likewise, in any clear delimitation—or common trait—in the subjective scope (see, for example, items e) or f) of Article 133), and, much less, a specification of the databases that may be involved, or who is responsible for their processing, which means that the confusion and contamination effect already expressed in 30 is verified with even greater intensity.

41. And, even more so, if it is not defined who is responsible for the processing, the full exercise of citizens' rights regarding their data is irreparably conditioned, which must necessarily be guaranteed legally, resulting in a serious legislative omission, with obvious constitutional implications.

42. Although in number 1 there is an attempt, in some entities, to describe to whom the data interconnection is directed, the truth is that it does not align with the concept of purpose for the processing of personal data.

43. And, what can practically be extracted may give rise to a set of information flows of personal data that appear to be completely hidden from their subjects, over which they have no control.

44. Furthermore, by reiterating in full the position already taken by this Commission, we refer to the excerpt corresponding to points 10 to 15 of Opinion/2022/98, regarding the Proposal for Law that approves the State Budget for 2023:

10. It is undeniable that the generalization of interconnections and reciprocal access to information contained in databases held by public entities, and some private entities, implies risks to the rights, freedoms, and guarantees of citizens. The risks associated with the actual possibility of interrelationship are at stake.

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all information relating to each citizen¹¹, individualized, which not only impacts their privacy (restricting it) but also their freedom and the freedom to develop their personality (restricting or conditioning them), constitutionally recognized for each citizen, particularly highlighting the risk of discrimination, which

renews itself in each historical moment under different guises—just remember how, even today, nationality and place of birth have proven to be factors of discrimination in Europe.

11. These risks have been accentuated in recent times, clearly demonstrating the fragility of many information systems that integrate sensitive data of citizens and the challenges that interconnections pose to the integrity of that data.

12. Understanding the objective of efficient information management and the streamlining of administrative procedures, especially in the field of social economy and the provision of care to disadvantaged individuals, and the utility, for this purpose, of sharing information about citizens held by the State and other public legal entities, as well as by private entities, the CNPD does not dispute, as it is not its function, the option of restricting fundamental rights resulting from the provision for these treatments.

13. What the CNPD is highlighting and considers unacceptable in a Rule of Law is the generic and open provision of such interconnections and accesses, without, at the legislative level, defining at least who the entities or public services responsible for such operations of processing the personal data of citizens are and what databases of those responsible are subject to such operations. This is a minimum level of normative density that cannot be overlooked by the national legislator in the context of matters that have a direct impact on rights, freedoms, and guarantees cf. articles 2 and 165, paragraph 1, subparagraph b), of the Constitution of the Portuguese Republic (CRP).

14. It is insisted: the determination of the extent and intensity of the relationship of personal information of citizens, particularly when it concerns their private lives, revealing dimensions that the constituent legislator and the Union legislator specifically intended to protect, cannot be left in the hands of the Public Administration without minimally precise and clear legal commands.

15. The continuous choice of open legislative norms that delegate to administrative bodies vast decision-making powers regarding data processing that has direct repercussions on the most fundamental dimensions of the citizen—generically providing for the possibility of relating all personal data in the possession of the Public Administration—puts at risk the primary guarantee of the constitutional regime of fundamental rights, which is to reserve to the law the definition of restrictions and conditions of rights, freedoms, and guarantees (cf. paragraph 2 of article 18 and subparagraph b) of paragraph 1 of article 165 of the CRP). And it undermines the essential function of a legislative norm that

11 As highlighted in previous opinions, the CNPD has pointed out that in this interconnected web of databases, from any identifying element—e.g., the civil identification number, the tax identification number, or the email address—any information relating to each citizen in the possession of the Portuguese Public Administration and, indeed, of the private entities covered by such provisions can be related.

5v.

is to ensure citizens' predictability regarding future restrictions and conditions on their fundamental rights.

iv. Regarding the provisions of Article 137 - Simplified granting and renewal of authorizations

45. This article seeks to amend Law 23/2007, which approves the legal regime for the entry, stay, exit, and removal of foreigners from national territory.

46. In its paragraph 2, it seeks to define that the simplified procedure for processing applications for the granting of residence permits with visa exemption, as provided for in paragraph 2 of Article 88 and paragraph 2 of Article 89 of that Law, includes the diligence of consulting relevant databases necessary to confirm that the applicant i) is not in the subsequent period of entry prohibition into national territory; ii) is not listed for the purposes of non-admission or refusal of entry and stay in the Schengen Information System by any Member State of the European Union, in the Integrated Information System of the Agency for Migration and Asylum Integration, or in the Integrated Information System of the Border and Foreigners Coordination Unit; and iii) is not convicted of a crime that, in Portugal, is punishable by a custodial sentence of more than one year, even if this has not been served or its execution has been suspended.

47. In paragraph 4, it is prescribed that the simplified procedure for deciding pending applications for the renewal of residence permits, including residence permits for investment and titles for regrouped family members, includes the following diligences: a) Consultation of relevant databases necessary to confirm that the applicant has not been convicted of a sentence or sentences that, individually or cumulatively, exceed one year of imprisonment, even if, in the case of conviction for an intentional crime provided for in Law No. 23/2007, of July 4, in its current wording, or related to it, or for a crime of terrorism, violent crime, or particularly violent or highly organized crime, the respective execution has been suspended; b) Consultation of the necessary databases to assess the applicant's compliance with their tax obligations and social security.

48. It is added in paragraph 5 that the consultations of the databases provided for in this article must be carried out, whenever possible, through automatic solutions aimed at interoperability between computer systems via the Public Administration Interoperability platform.

49. Thus, having made the presentation, and considering the observations made in the previous parts of this opinion, it results, for the same reasons, that it cannot be accepted as compliant with the data protection matter

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necessary

50. Well viewed, the terms do not equate or define themselves; it is unknown what the databases are, who is responsible for their processing, and what purposes justified their collection, to assess whether they align with those that are now intended to be attributed to them.

51. Inevitably?), which hardly share the restrictive nature with which the processing of citizens' data is utilized. The contradiction in the terms seems to allow that any available databases can be used to obtain certain information, regardless of their quality, the path that must be undertaken, and the quantity or nature of the information that such relevance can cover.

52. And if, by relevance, only the utility that a certain source of information may have in achieving or not achieving the desired information is understood, then, truly, what is at stake is not a guarantee of the rights and principles that emerge from the fundamental rights of citizens but their total inversion, a justificatory hook raised at the end for them to have been collected, in whatever manner, or, but which demonstrates the importance of specifically determining the information to be processed, its flows, and the purposes that justify the chosen means.

53. It would therefore be necessary to determine, at least, which entities are involved and their respective databases subject to consultation, what information may be consulted, in strict measure of necessity for the purposes proposed in the norm, how the respective flow will proceed, and who is responsible for the processing of that information.

54. Furthermore, despite referring to the Public Administration Interoperability platform, does it present cases? And, therefore, when it does not? It should, in conclusion, regarding matters concerning fundamental rights, such as personal data, avoid blank addresses, and instead, legislatively determine the modalities through which processing operations can be executed, in order to guarantee their fundamental cores.

6v.

v. E. Regarding the provisions of Article 158 - Amendment to the Vehicle Tax Code

55. The article in question introduces a set of amendments to Law 22-A/2007, of June 29, highlighting, for our current purposes, its paragraph 4, which stipulates that they must be submitted electronically with the submission of the Vehicle Customs Declaration (DAV), with the originals to be kept for a period of four years, without prejudice to the requirement that they must be presented at any time to the services.

56. Comparing with the previous version of the provision, it is verified that

57. It can be inferred that the aforementioned document (Vehicle Customs Declaration) contains personal data in its content, necessarily transmitted through electronic means, without any definition,

once again, of any determination for the execution of data processing or which platform to use and its responsible parties, making it impossible, as has been stated regarding the previous points, to assess the guarantee of the rights of the data subjects, whether in relation to the aforementioned principles, whether regarding the exercise of their rights, or concerning the technical and security measures to be adopted in the processing of that data.

58. This is, therefore, a similar omission to those already pointed out, requiring clarification and legislative determination, especially since, from what is derived from the new legal formula, it is the only means available for compliance with that obligation.

vi. Regarding the provisions of Article 166 - Addition to the Statute of Tax Benefits

59. Also parallel to the observations already made previously, in paragraph 5 of this article, the communication of data to the Tax and Customs Authority is foreseen, with its regime being subject to regulation by ordinance of the members of the Government responsible for the areas of finance, economy, science, and higher education.

60. It will be considered reproduced, regarding this matter, what has already been stated above in the points above of this opinion, and the reservations that this Commission has been expressing regarding the establishment of fundamental data protection matters and their guarantees for a later - and different - moment from the decision of the respective treatments, a fact that demonstrates that the necessary adequacy judgment for assessing the treatment principles was not formulated, thus in the evaluation of its recourse, as they were nonexistent at the time of legal drafting.

61. It is again mentioned that the overall judgment regarding data protection matters co-depends on this qualitative assessment between the end(s) to be achieved, the means to be used, and the manner of its execution, points that must assume, *ab initio*, legislative dignity, and which are, in another way, genetically flawed.

62. Still in this argumentative line, the same indications are left regarding the matter concerning Article 6 and the intended amendment to Article 223 of the CPPT, as it is provided in its number 7, that the pledged must, by electronic data transmission or through the Finance Portal or Social Security or the non-existence or non-pledgeability of the

63. truly unattainable. In fact, it is not at all indifferent whether it is by any means of electronic data transmission, or from the Finance Portal, or from Social Security, all invoking different final and executive natures.

64. Here too, a true regulatory and definitional regime must be determined, given the weighting requirements concerning the data processing that is intended to be carried out.

vii. Regarding the provisions of Article 185 - Addition to Decree-Law No. 118/83, of February 25.

65. With the present article of the Proposal, the addition of an article to the aforementioned Decree-Law is announced, with number 4 - concerning public employees of local authorities and the benefits granted by ADSE.

66. In this assessment, some difficulty of systematic coordination with the other articles embodied in that Decree-Law is confessed, as in the unaltered diploma, the matter corresponding to the object of addition is provided for in Article 5.

67. In fact, paragraph 1 of the present addition corresponds to paragraph 1 of Article 5, which, at least as far as can be understood, will remain in force, unaltered, which may cause difficulties in the methodological reach of the prescriptions contained therein, due to subordination.

68. Likewise, in numbers 3 and 4 of the added Article 4-A, a legal referral is established, seemingly confusing the referent and the referent, as the destination of the referral is precisely the article that has just been created - the new Article 4-A of Decree-Law No. 118/83.

7v.

69. While the technical drawing utilized is well understood, it is believed that the systematic fluency of

the legislative discourse should be addressed; if, as a rule, legal references are instruments that are only advisable in legislative drafting when there are no alternative solutions that, more simply and directly, lead the interpreter to the intended regulation, it will always be necessary to require that, in the economy of discourse that justifies them, the overall meaning of its hermeneutic understanding is not compromised, which renders intranormative references meaningless, at least in the form that seems to have been used in this case.

70. Regarding the matter strictly connected to data protection, it is prescribed in paragraph 3 of the article that personal data of the respective beneficiary workers of ADSE and their family members with rights, necessary to ensure the payment of charges by ADSE, shall be defined in terms and support to be established by this.

71. As stated throughout this Opinion, this Commission emphasizes, once again, the necessity for the regime governing data protection matters to be conformed beforehand by the legislative body, and not to defer potential restrictions on fundamental rights to the sphere of administrative entities, whose attributions and/or competencies do not align with the legal-constitutional criteria that must be invoked in the context of personal data processing and the guarantees associated with it.

72. Important in light of the CNPD's assessment is also the content of number 4 of the same article. - For the purposes of the provisions of article 4-A of Decree-Law No. 118/83, of February 25, the employers of local administration shall also ensure the updating of the historical record of healthcare provided, in the years 2022 and 2023, to the respective beneficiary workers of ADSE and their family members with rights, who have multi-annual limits, in terms and support to be established.

73. The corpus of the article under consideration provides, in summary, for the processing of data related to the health of workers and their family members with rights, more specifically, the historical record of healthcare provided in the years 2022 and 2023, a matter that enjoys particular protection in the realm of personal data protection.

74. In fact, the protection of health-related data of individuals is characterized by a reinforced specialty and particular sensitivity, which should be carefully addressed by the Legislator, as well illustrated by the application of the individual regime provided in article 9 of the GDPR.

75. As a category of special data, the principles relating to the processing of personal data are also more stringent, in the sense of their aggravation, while spheres of reinforced protection, all of which must be taken into account in the primary judgment of establishing the regime for their processing.

76. Even if one concludes on the beneficial necessity of processing these particular data, this does not realize and the data to be collected and processed, not only in its extent but also in quality, must be subjected to an even stricter judgment of overall proportionality, imposed by the special category of data to be processed.

77. For beneficiary workers of ADSE, the data to be processed must share that same quality.

78. That is, if the aim is merely to assess, in a quantitative criterion, ceilings or quantitative limits, the information to be collected should also be restricted, not to a descriptive-qualitative historical health record, but rather, to the information strictly necessary for the relative position of the beneficiary in relation to those multi-annual limits, with a view to that specific assessment - in summary, the values involved and not the care provided that may exceed more than its categorization for that purpose.

79. Everything that exceeds the specific normative purpose must, therefore, be excluded by the Legislator, right from the specification of the data to be processed, which is imposed with greater urgency in the special categories of data.

80. Furthermore, this reinforcement must also be diligently considered, in addition, when collecting data from third parties regarding the holder especially covered, such as family members of beneficiaries who may fall within the scope of the norm.

81. And if, regarding the reference to public entities of the defining terms of data protection, this Commission has already widely criticized, these observations are now reiterated and invoked more

impressively, to the extent that, when sensitive data is at stake, this disregard appears more serious, especially given the fundamental nature of the rights involved, in direct collision with what that identity imposes.

82. The reinforced nature of this data also raises another imposition that must be kept in mind.
8v.

83. Article 35 of the GDPR, in its paragraph 3, imposes the requirement to conduct a data protection impact assessment in circumstances where the data pertains to the category outlined in Article 9, which includes, as seen, health data, as they may imply a high risk to the rights and freedoms of individuals. Cf. paragraph 1 of the same article.

84. This Commission also reinforced this point in its Regulation No. 798/2018, explicitly stating that health data are drivers of the need for an impact assessment.

85. If such an assessment is deemed mandatory, as stated above in point 10, due to the legislative proposal concerning data protection, it would now be required by the nature of the matter.

86. Finally, as these are reflections common to the topics analyzed, the CNPD emphasizes that all data processing operations must comply with the principles of integrity and confidentiality—as well as that of accountability—against unauthorized or unlawful processing and against loss, destruction, or accidental damage, adopting

14.

87. Regarding this matter, the CNPD has already issued guidelines for organizations on security measures that must be adopted to minimize the consequences for individuals' rights, approving Directive 2023/1, to which it refers in full.

88. However, by not defining in the Law the terms that justify them and how they will be carried out, a concrete and consolidated analysis is made impossible, which should reference the generality of the principles that these processes must comply with.

89. Despite the exercise that has been attempted, there are important aspects that cannot be clarified through the aforementioned Proposal, such as those concerning data retention, or, in general, the exercise of the rights of data subjects and the concrete assessment of the purposes and their limitations, to be coordinated with the nature and quality of the data to be processed.

90. This results, even from another perspective, in the importance of legislating on such matters with the concern of assigning them a precise regime, justifying and at the same time truly conforming to the rights and guarantees of personal data subjects, which does not always occur in matters of personal data and more evidently in their dematerializations; their processing does not constitute a mere accessory instrument, but, more often than not, assumes itself as a true original legal cause, as the lawful or justifying design of its ontology or identity, as well as the corresponding aspects of its exercise and guarantee, all expressing the fundamental personalistic character that they enjoy.

91. And, precisely for the same reasons, the set of rights of data subjects should also be sought to be embodied in that regime and the manner in which they can be exercised, the omission of which immediately disfigures the ontic or subjective ownership of those rights and their effective protection, even in a jurisdictional capacity.

92. There is, truly, no fullness of right when the possibility for its holder to fully exercise it is lacking, even in relation to the counterparty, or the effective protection aimed at its satisfaction.

III. Conclusion

93. In the terms and with the grounds presented, the CNPD recommends:

a) Rethink and/or deepen the mechanism provided for in Article 77 of the Proposal, considering the interests at stake and in observance of the constitutional requirements of precision and clarity of restrictions on rights, freedoms, and guarantees, in a proportionality judgment, and prescribe the adoption of measures to mitigate their impact, capable of ensuring the intended purpose, avoiding indiscriminate or stigmatizing uses;

b) Deepen, in accordance with the observations made in points 26 to 33 of this opinion, the particular regime to be applied to that provided for in Article 79 of the Proposal, both regarding the subjective scope and the objective scope, which unnecessarily and indefinitely expands the processing of

personal data therein provided;

c) Deepen, establishing an autonomous and full data protection regime, the mechanism provided for in Article 137 of the Proposal, eliminating—

d) Specify, likewise, in accordance with Article 158 of the Proposal, what regime and guarantees are to be applied to the processing that is aimed to be carried out in that scope;

15 See, for example, the provisions in Chapter III of the GDPR.